

NHTSA

Walk this Way: Feds Finally Want Car Safety Standards to Apply to People Outside the Vehicle

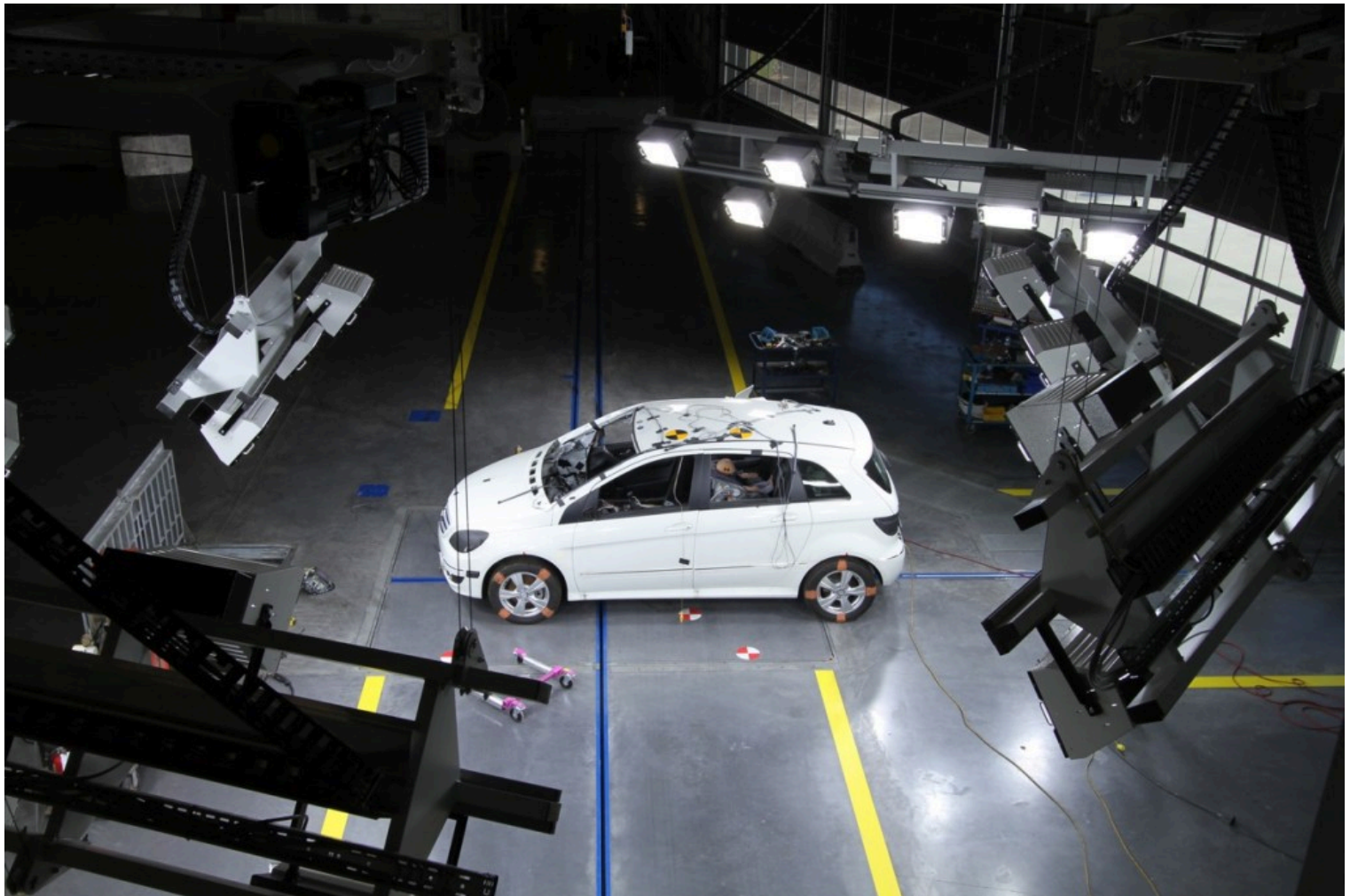
In the midst of a two-decade rise, the National Highway Traffic Safety Administration proposed new rules to "reduce fatalities among pedestrians."



By **Gersh Kuntzman**



7:20 AM EDT on September 10, 2024



Messring, CC

Imagine that — the federal government has finally moved to make cars safer for people outside them.

In the midst of a fifteen-year rise in pedestrian deaths that more or less mirrors the sharp rise in American vehicle size, the National Highway Traffic Safety Administration proposed new rules on Monday to “reduce fatalities and serious injuries among pedestrians struck by vehicles” by establishing a new motor vehicle safety standard “requiring new passenger vehicles be designed to reduce the risk of serious-to-fatal injuries in child and adult pedestrian crashes.”

The proposed rule itself would apply to all vehicles under 10,000 pounds, which includes almost all SUVs and “light trucks,” which have become a large segment of the U.S. market.

“We have a crisis of roadway deaths, and it’s even worse among vulnerable road users like pedestrians,” Sophie Shulman, NHTSA’s deputy administrator, said in a statement.

The auto industry would be subject to new testing procedures “simulating a head-to-hood impact and performance requirements” and the resulting vehicle designs “would have to reduce the risk of serious to fatal head injury to *child and adult pedestrians* in impacts at vehicle speeds up to 25 mph, which encompass about 70 percent of pedestrian injuries from vehicle impacts,” the rule states (emphasis ours).

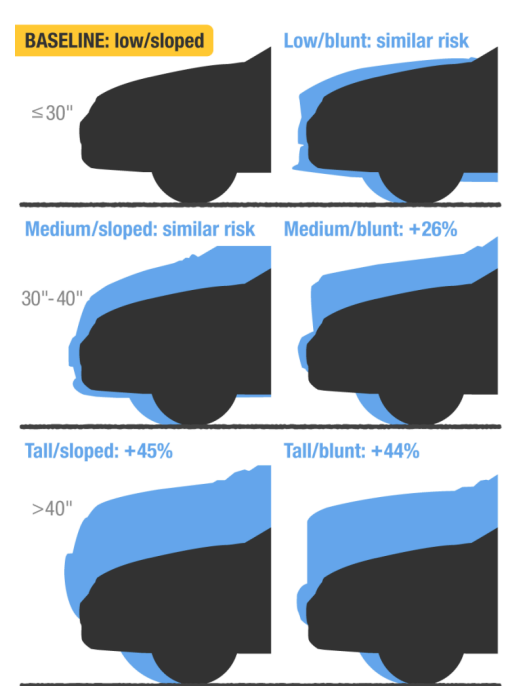
The new rule also acknowledges the elephant in the room as far as street safety advocates are concerned: both the New Car Assessment Program and the Federal Motor Vehicle Safety Standards have historically been designed to ensure that new cars provide “a minimum level of safety that all new vehicles must provide to every purchaser,” as opposed to those *outside* the car.

Going forward, according to the rule testing of new vehicles would “simulate a head-to-hood or head-to-fender top impact ... of two different impactors: one representative of the head of a struck 6-year-old child and another representative of the head of a struck 50th percentile adult male pedestrian.”

The new standard would save 67 pedestrian deaths a year, according to NHTSA. Meeting the new standard would cost carmakers roughly \$3 per vehicle.

Study. after study. after study. has revealed that the high hood styles of today's SUVs and pickup trucks — which are far bigger and heavier than earlier models — are a major factor in pedestrian deaths.

“Manufacturers can make vehicles less dangerous to pedestrians by lowering the front end of the hood and angling the grille and hood to create a sloped profile,” said a report from the Insurance Institute for Highway Safety earlier this year. “There’s no functional benefit to these massive, blocky fronts.”



Graphic: IIHS

Pedestrian deaths would drop 18 percent just by capping the hood height of passenger trucks and SUVs at the level of a modest crossover, another study revealed.

Some American vehicles, especially those sold in Europe, do meet the proposed standards, but the new rules would address the “many U.S. variants and other models built upon uniquely American platforms that may or may not [meet the new standards],” the rule states. “This includes essentially the entire pickup truck and large SUV segments (about 22 percent of the U.S. passenger vehicle 2020 sales, according to data provided by Wards Automotive).”

Pedestrian deaths finally dropped a little in 2023, the last full year studied, but they remained 14 percent higher than 2019, the last full year before the pandemic. Pedestrian deaths have risen 75 percent since 2009.

And the share of pedestrian deaths stemming from collisions with light trucks has risen compared to passenger cars.

U.S. Pedestrians Killed in Crashes Where the Striking Vehicle Was a Passenger Car or Light Truck, 2012-2022

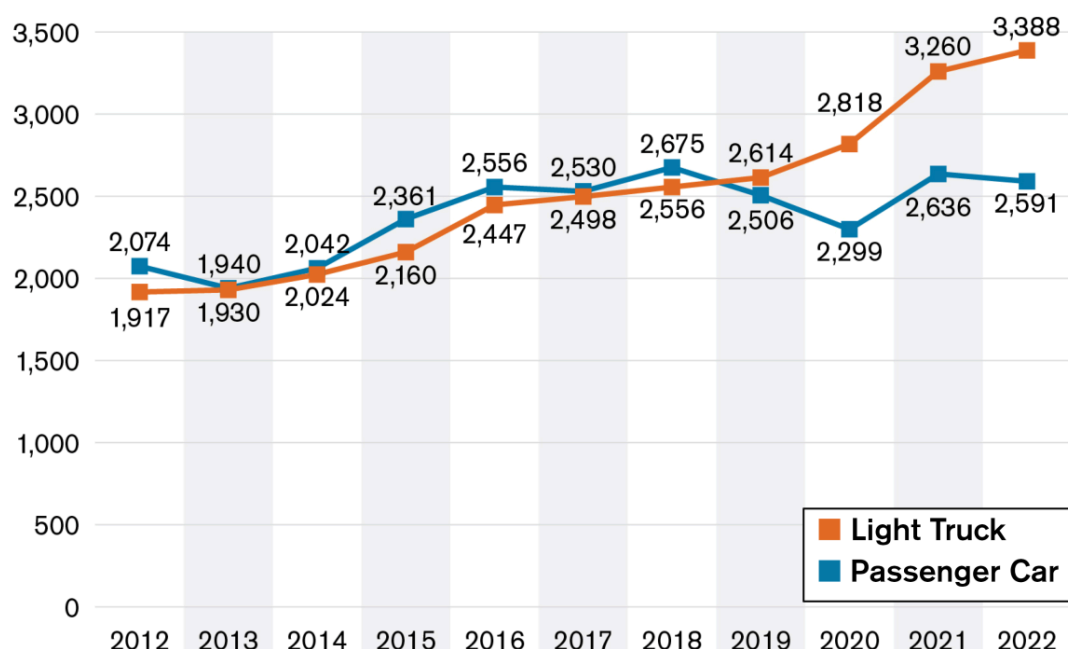


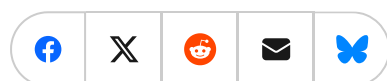
Chart: Governors Highway Safety Association

Reaction to the new rules was swift — and positive, even in automobile quarters.

“The NHTSA’s Pedestrian Crash Safety Rules Could Change American Car Design Forever,” wrote [The Drive, a car magazine](#). “The U.S. has never made automakers seriously care about pedestrian safety. That might change soon.”

NHTSA will be taking public comment on the new rules. To comment, cite the docket number of the rules — NHTSA-NHTSA-2024-0057 — and transmit your comments through the [federal eRulemaking Portal](#) or via snail mail to:

*Docket Management Facility, M-30
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Gersh Kuntzman

Tabloid legend Gersh Kuntzman has been with New York newspapers since 1989, including stints at the New York Daily News, the Post, the Brooklyn Paper and even a cup of coffee with the Times. He's also the writer and producer of "Murder at the Food Coop," which was a hit at the NYC Fringe Festival in 2016, and "SUV: The Musical" in 2007. He also writes the Cycle of Rage column, which is archived [here](#).

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